TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
July 25, 2022
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Aaron Butner, Cameron Swails, Elliott Barrow, Julian Hopkins
Absent: Giles Branch, Meghan Stevens.
Staff: Chris Swalhah, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Barrow seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath.

G. Business

1. **Case A-01-2022, Central Mount Pleasant Tracks 4-1 & 4-5, TMS#5590000017 & 5590000538. Appeal of the zoning official's determination that the project known as Gather Mount Pleasant met the parking requirements of §156.172(A)(3)(a). MEMO**

This item was removed pursuant to an agreement by the parties.

2. Case V-16-2022, 500 Pelzer Drive, TMS#5170700001. Request for relief from the strict application of 156.225(C) and 156.226(A) to allow the removal of a Historic 41.4'' Live Oak without mitigation.

- Mr. Swalhah reviewed staff comments with the Board.
- Ms. Kim Seeger reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Mr. Hopkins moved for denial based on the findings that there is not a sufficient hardship. Mr. Barrow seconded the motion. Motion passed on a 4 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Hopkins and Mr. Wood in favor; Mr. Swails opposed.*

3. Case V-17-2022, 630 Pitt Street, TMS# 5320500041. Request for relief from the strict application of 156.313(F)(3)(d) to allow less than 10% of the home's Building Area Ratio (BAR) to be comprised of porches.

- Mr. Swalhah reviewed staff comments with the Board.
- Mr. James Boyd and Ms. Hazel "Sam" Boyd reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that denial would not prohibit use of the property, there might not be any extraordinary conditions, there is no indication that it is similar to other properties, and although approval would not be a detriment to the surrounding properties, all four criteria must be met and this has not been indicated since the use*

of the property would not be prohibited if the variance was not approved. Mr. Butner seconded the motion. Motion passed on a 4 to 1 vote with Mr. Butner, Mr. Swails, Mr. Barrow, and Mr. Wood in favor; Mr. Hopkins opposed.

4. **Case V-18-2022, 615 East Hobcaw Drive, TMS# 5140400021. Request for relief from the strict application of 156.303 (Table) to allow a front setback encroachment of 2.5 feet. The ordinance requires a 30-foot front setback for the property**

- Mr. Swalhah reviewed staff comments with the Board.
- Mr. Shaun Laursen reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Mr. Swails moved for approval based on findings that are extraordinary and exceptional conditions as the applicant has done everything in his power to do right during construction, there was an error of 30 inches and did not move forward once the mistake was discovered; conditions might not apply to other properties; mistake was by the architect and surveyor and not the fault of the owner; and approval would not be a detriment to the surrounding properties. Mr. Hopkins seconded the motion. Motion passed on a 4 to 1 vote with Mr. Swails, Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner opposed.*

H. Approval of Final Order

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:06 pm.

Submitted by,
L. Lynes
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